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Case Number: 24STCV27134 Hearing Date: September 15, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on

Demurrer

The Demurrer is overruled.

BACKGROUND

Plaintiff Cooper Hickox (Plaintiff) filed this action against Edgar Ochoa (Ochoa), Rescore Hollywood, LLC (Rescore), the City of Los Angeles (the City), and Bernards Builders, Inc. (Bernards), alleging that a vehicle Ochoa drove as he left The Rise Hollywood struck Plaintiff as Plaintiff rode his motorcycle on Fountain Avenue. Rescore owns The Rise Hollywood, an apartment building Bernards constructed. Rescore filed a Second Amended Cross-Complaint (SACC) against Ochoa, Bernards, and Roes 1 through 10, alleging that Bernards built the property, including its driveway egress, under a construction contract (the Contract) whose indemnity provision obligates Bernards to defend and indemnify Rescore against Plaintiff's claims.

The causes of action in the SACC are: (1) Equitable Indemnity (against Ochoa and Roes 1 through 10); (2) Contribution and Equitable Apportionment (against Ochoa and Roes 1 through 10); (3) Declaratory Relief (against all cross-defendants); and (4) Express Contractual Indemnity (against Bernards and Roes 5 through 10).

The Court sustained Bernards's demurrer to Rescore's First Amended Cross-Complaint (FACC) with leave to amend on May 29, 2026, and sustained Bernards's demurrer to the third cause of action of Plaintiff's First Amended Complaint (FAC) with leave to amend on July 29, 2026. Plaintiff filed the Second

Amended Complaint on 8/13/2026, after the filing of the SACC.

Bernards filed a Demurrer to the SACC. Rescore filed an Opposition.

REQUEST FOR JUDICIAL NOTICE

As it has with its prior demurrers, Bernards requests judicial notice of two exhibits.

Exhibit A is an excerpt of the certified transcript of the deposition of Edward Miller, taken in Bernards Builders, Inc. v. Rescore Hollywood, LLC (Super. Ct. L.A. County, No. 22STCV00763), offered to show that Rescore contracted with the project architect and that the design consultants' contracts were in Rescore's name. (RJN, at p. 2:5-14.) Rescore opposes the request.

Courts differ over whether judicial notice can ever be granted as to the truth of statements in a deposition transcript. (See *Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 22 [holding depositions are never noticeable for their truth]; *Joslin v. H.A.S. Insurance Brokerage* (1986) 184 Cal.App.3d 369, 374-375 [rejecting that bright line rule].) *Joslin* adopts the approach that “judicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed.” (*Joslin*, supra, 184 Cal.App.3d at p. 375.) The Court need not decide which approach to adopt because even under the more flexible *Joslin* approach, the deposition testimony is not noticeable for its truth.

Bernards offers the transcript to establish that Rescore retained the architect and directed the design of The Rise Hollywood. That fact is disputed. (Opp., at pp. 8:21 - 9:14.) In any event, Rescore's retention of the architect would not establish whether Plaintiff's injury traces to the design or to Bernards's construction. The request is denied as to Exhibit A.

Exhibit B is the Certificate of Occupancy the City issued for The Rise Hollywood, bearing a status date of January 10, 2022. Rescore does not dispute that the certificate issued and disputes only the inferences Bernards draws from it. (Opp., at p. 9:15-23.) The Court may judicially notice the existence of the document. However, “the truth of statements contained in the document

and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable.” (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 113.) The Court takes judicial notice of the certificate’s existence and the date it bears, and of nothing further.

LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-721.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “‘A demurrer tests the pleading alone, and not the evidence or the facts alleged.’ [Citation.]” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.) As such, courts assume the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) However, they do not accept as true deductions, contentions, or conclusions of law or fact. (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538.)

ANALYSIS

Bernards challenges each of the four causes of action and asks that the Demurrer be sustained in its entirety without leave to amend. (Dem., at pp. 3:2-19, 18:4-5.) Bernards also states that it joins Rescore’s request for a declaration of the parties’ rights. (Dem., at p. 3:12-15.)

I. Indemnity and Contribution

Bernards contends that the first and second causes of action allege no facts showing how it could be liable for Plaintiff’s damages. Rescore asserts neither cause of action against Bernards. Rescore pleads equitable indemnity “as to Cross-Defendant EDGAR OCHOA and ROES 1 through 10, inclusive,” and pleads contribution and equitable apportionment as to the same cross-defendants. (SACC, at pp. 3:13-15, 4:5-7.) Rescore confirms that limitation in its Opposition, stating that the two causes of action “are only directed towards Edgar Ochoa and Roes 1-10.” (Opp., at p. 3:25-26.) The Demurrer therefore presents nothing for the Court to decide as to those causes of action, and the Demurrer to the first and second causes of action is overruled as moot.

II. Express Indemnity

“[A]n indemnitee seeking to recover on an agreement for indemnification must allege the parties’ contractual relationship, the indemnitee’s performance of that portion of the contract which gives rise to the indemnification claim, the facts showing a loss within the meaning of the parties’ indemnification agreement, and the amount of damages sustained.” (Four Star Electric, Inc. v. F & H Construction (1992) 7 Cal.App.4th 1375, 1380.) “Courts interpret contractual indemnity provisions under the same rules governing other contracts, with a view to determining the actual intent of the parties.” (Maryland Casualty Co. v. Bailey & Sons, Inc. (1995) 35 Cal.App.4th 856, 864.)

A. Pleading Sufficiency

Bernards contends that Rescore alleges no facts showing how the collision falls within the scope of the Article 14 indemnity provision, that Rescore must identify which of the provision’s five categories entitles it to a defense, and that Rescore must allege duty, breach, and proximate cause.

The Court rejects the category argument. Because Rescore sets Article 14 out in full, the Demurrer admits not only the provision’s contents but any pleaded meaning to which it is reasonably susceptible. (Aragon-Haas v. Family Security Ins. Services, Inc. (1991) 231 Cal.App.3d 232, 239.) Article 14 obligates Bernards to “defend, indemnify, and hold the Indemnitees harmless” against third party claims that “arise out of, or result from (i) the performance of the Work, provided that such Loss is bodily injury, sickness, disease, death, property damage, or injury to or destruction of tangible property.” (SACC, ¶ 26.) Rescore seeks a defense and indemnity against a third party’s claim for bodily injury. The first of the enumerated categories is therefore the only one Article 14 makes available on those facts. Bernards cites no authority requiring a cross-complainant to recite the subdivision on which it relies.

The Court likewise rejects the contention that Rescore must plead duty, breach, and proximate cause. Express contractual indemnity is a claim on the Contract and Rescore pleads the obligation defined in Article 14. Rescore need not state a negligence cause of action of its own to plead that obligation.

Here, Rescore sufficiently alleges a claim for express contractual

indemnity. First, Rescore alleges the contractual relationship, a construction contract entered on July 14, 2017 for the construction of The Rise Hollywood, under which Bernards's scope of work covered the total development and construction of the property. (SACC, ¶¶ 23, 24.) Second, Rescore alleges its performance of the portion of the Contract that gives rise to the claim, its January 14, 2025 tender of the defense, which Bernards did not accept in full. (SACC, ¶ 30.) Third, Rescore incorporates Plaintiff's FAC, which asserts against Rescore a claim arising out of Bernards's performance of the Work. (SACC, ¶ 4.) Plaintiff alleges that Rescore caused or permitted unsafe and dangerous conditions to exist upon the PREMISES, and that Ochoa's vehicle, leaving the PREMISES, struck Plaintiff as a direct result of those conditions. (FAC, ¶¶ 14, 16.) Plaintiff attributes that condition to Bernards's construction, alleging that Bernards "negligently, carelessly, recklessly, and/or otherwise tortiously constructed and/or contributed to the creation of the PREMISES and its vehicular egress in a manner that caused or permitted to exist upon and about said PREMISES unsafe and dangerous conditions, including but not limited to inadequate sight lines for motorists exiting the PREMISES onto Fountain Avenue." (FAC, ¶ 22.) Plaintiff further alleges that his injuries followed "[a]s a direct and proximate result" of those acts and omissions. (FAC, ¶ 24.) Finally, Rescore alleges its damages, the substantial amounts it has been required to expend, and will expend, in defending Plaintiff's First Amended Complaint and in settlement or satisfaction of any judgment. (SACC, ¶ 27.) Those sums are "Losses" within the meaning of Article 14.

Bernards argues that Rescore must plead the facts bringing the loss within the agreement as its own allegations, and that Rescore cannot make them its own by adopting a pleading it denies in the same paragraph. (Reply, at pp. 5:13 - 6:3.) Rescore incorporates Plaintiff's FAC "only to state a cause of action for purposes of this Cross-Complaint while specifically deny[ing] any and all of the allegations contained therein." (SACC, ¶ 4.) Rescore pleads in the alternative rather than disavowing the allegations it adopts. "When a pleader is in doubt about what actually occurred or what can be established by the evidence, the modern practice allows that party to plead in the alternative and make inconsistent allegations." (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.) An indemnity cross-complaint is contingent by its nature. Rescore denies Plaintiff's allegations as against itself, and alleges that if Plaintiff establishes them, Bernards must answer for the result under Article 14. The denial clause states that contingency. The clause does not withdraw the allegations Rescore adopts to plead its own claim, and Bernards cites no authority holding that it does.

The May 29, 2026 order does not supply that authority. The Court sustained the demurrer to the FACC's fourth cause of action because neither the FACC nor the pleading it then incorporated alleged facts showing that Plaintiff's injury arose out of or resulted from Bernards's work on The Rise Hollywood. (Minute Order, May 29, 2026.) The FACC incorporated Plaintiff's original Complaint, which did not name Bernards and pleaded no cause of action against it. The SACC incorporates the FAC, which pleads a negligence cause of action against Bernards resting on its construction of the egress. The factual premise of the earlier ruling is therefore no longer present.

Bernards also objects that Rescore's allegation that Bernards "owes RESCORE a full defense" is a legal conclusion rather than a factual allegation. (Reply, at p. 4:11-15; SACC, ¶ 30.) That allegation states the legal consequence of the facts Rescore pleads. Rescore alleges the Contract and Article 14 (SACC, ¶¶ 23, 26), the tender Bernards did not accept in full (SACC, ¶ 30), and the defense costs it incurred as a result of the negligence, fault, and other culpable conduct of Bernards (SACC, ¶ 27). Those are allegations of ultimate fact.

Negligence may be pleaded generally. "[I]t is sufficient in cases of this class to plead that the thing done was negligently done." (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156.) A pleading need only set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source, and extent of the cause of action. (Id. at pp. 156-157.) The FAC's allegations charge Bernards's own negligence in building the egress rather than liability for transmitting a design prepared by others. (FAC, ¶ 22.) The SACC adopts those allegations.

Article 14 obligates Bernards to defend as well as to indemnify, and the defense obligation does not wait on proof that the indemnity obligation is owed. Civil Code section 2778 states rules for interpreting a contract of indemnity, which apply "unless a contrary intention appears." Article 14 expressly promises a defense, and nothing in it states a contrary intention. Under those rules, "[a]n indemnity against claims, or demands, or liability, expressly, or in other equivalent terms, embraces the costs of defense against such claims, demands, or liability incurred in good faith." (Civ. Code, § 2778, subd. 3.) "The person indemnifying is bound, on request of the person indemnified, to defend actions or proceedings brought against the latter in

respect to the matters embraced by the indemnity.” (Id., subd. 4.) A contractual promise to defend “necessarily arises as soon as such claims are made against the promisee,” and a promise to defend suits “arising out of, relating to, or connected with, any and all claims” “necessarily extend[s] to suits that allege[] such claims, not just suits in which they [are] proven.” (Crawford v. Weather Shield Mfg., Inc. (2008) 44 Cal.4th 541, 554, 560.) The Court of Appeal has applied Crawford to hold that a contractor’s duty to defend arose as a matter of law from the underlying plaintiff’s allegation that his injuries arose out of the contractor’s work. (Centex Homes v. R-Help Construction Co., Inc. (2019) 32 Cal.App.5th 1230, 1236-1237.) Rescore alleges the tender, the refusal, and the defense costs already incurred. Whether Bernards’s work in fact caused Plaintiff’s injuries is a future question. Under Article 14 the defense obligation attaches to the claim as asserted, and Rescore adopted the pleading that asserts it.

Rescore also relies on Plaintiff’s Second Amended Complaint. Bernards correctly replies that it postdates both the SACC and the Demurrer. (Reply, at pp. 5:28 - 6:3.) Rescore filed the SACC on June 11, 2026, Bernards filed the Demurrer on July 10, 2026, and Plaintiff filed the Second Amended Complaint on August 13, 2026. (Register of Actions, at pp. 18-19.) The Court tests the SACC as filed. The SACC incorporates the FAC.

B. Design Exclusion

Bernards contends that Article 14 excludes losses arising from defects in a design Rescore or its independent contractors furnished, that Rescore retained the architect and the other design professionals, and that Bernards built to their designs.

The Court rejects the argument. Article 14 excludes a Loss arising from “defects in design furnished by such Indemnitee or such Indemnitee’s agent’s, servants or independent contractors.” (SACC, ¶ 26.) The exclusion is a term of the Contract, and the Court construes it under the rules governing contracts generally. (Maryland Casualty Co., supra, 35 Cal.App.4th at p. 864.) A Loss the exclusion reaches is not a Loss Article 14 embraces, so the exclusion, if established, defeats the claim rather than merely limiting recovery. Whether the condition Plaintiff describes traces to the architect’s design or to Bernards’s construction is therefore a question that can end this cause of action. It is not a question the Court answers on demurrer.

A complaint that alleges facts embraced by the indemnity agreement triggers the duty to defend throughout the underlying action unless the indemnitor conclusively shows by undisputed facts that the claim is not covered. (Centex Homes, supra, 32 Cal.App.5th at pp. 1236-1237.) Plaintiff alleges that Bernards negligently constructed the egress and its sight lines. Plaintiff does not allege that the condition originates in a design Rescore or its consultants furnished. The exclusion accordingly does not appear from the allegations. Bernards relies on Barnthouse, which states a contractor's immunity where "the work has been performed in accordance with plans and specifications furnished by the owner which the contractor is bound to follow and the completed work has been accepted by the owner." (Barnthouse v. California Steel Bldgs. Co. (1963) 215 Cal.App.2d 72, 74.) The court there resolved the conformity question only after trial, on review of the evidence. Bernards may prevail on the exclusion at the pleading stage only if its factual predicates appear on the face of the SACC. Here, neither predicate appears. Rescore does not allege that Bernards built the egress in conformity with plans it was bound to follow and Rescore does not allege that the defect lies in the design. A demurrer may rest on matters the Court may judicially notice. (Code Civ. Proc., § 430.30, subd. (a).) Bernards's showing, though, rests on the deposition excerpt that the Court declines to notice and the inferences from the Certificate of Occupancy that the Court does not draw. Bernards therefore asserts facts outside the pleading. On July 29, 2026, the Court rejected the same argument as a ground for sustaining the demurrer to Plaintiff's FAC. (Minute Order, July 29, 2026.)

C. Plaintiff's Pleadings

Bernards contends that Rescore's incorporation of Plaintiff's FAC cannot cure the SACC because the FAC is itself deficient. Bernards further contends that the FAC is time-barred as to Bernards under Code of Civil Procedure section 335.1, because Plaintiff did not name Bernards until April 28, 2026, roughly 30 months after the October 12, 2023 collision.

Bernards contends in the alternative that premises liability requires a defendant to own, possess, or control the property where the injury occurred, and that Plaintiff alleges none of the three as to Bernards.

Rescore argues that express contractual indemnity is the only claim it asserts against Bernards, and that Plaintiff's claim against Bernards sounds in negligence, not pre mises liability.

The Court has addressed the incorporation argument above. The Court took up the limitations argument on July 29, 2026, sustained the demurrer to the third cause of action of the FAC with leave to amend, and held that Plaintiff's failure to substitute Bernards for a fictitiously named defendant is a procedural defect Plaintiff may cure. (Minute Order, July 29, 2026.) Whether Plaintiff cures it is a question on Plaintiff's pleading. Bernards does not explain how a curable limitations defense to Plaintiff's claim establishes that Rescore cannot plead a loss within Article 14.

As to premises liability, Plaintiff pleads negligence against Bernards, and the causes of action Plaintiff titles negligence and premises liability run against Rescore and the City. (FAC, at pp. 3:9-11, 5:21-23, 7:14-16.) Neither the FAC nor the SACC asserts a premises liability claim against Bernards.

D. Completed and Accepted

Bernards contends that a contractor whose completed work the owner has accepted is not liable for injuries caused by the condition of the work unless the defect was latent or concealed. Bernards further contends that the Certificate of Occupancy establishes that it completed its work roughly 21 months before the collision.

The doctrine states the limits of a contractor's liability in tort to persons outside the construction contract. "[W]hen a contractor completes work that is accepted by the owner, the contractor is not liable to third parties injured as a result of the condition of the work, even if the contractor was negligent in performing the contract, unless the defect in the work was latent or concealed." (Neiman v. Leo A. Daly Co. (2012) 210 Cal.App.4th 962, 969 (Neiman).) However, Neiman did not concern express indemnity. Even if acceptance protected Bernards from liability from third-parties Rescore is not a third party. It is the owner and Bernards's counterparty on the Contract, and it pleads the express indemnity Bernards undertook by Article 14. The doctrine therefore does not apply to that claim.

Accordingly, the Demurrer to the fourth cause of action is overruled.

III. Declaratory Relief

Bernards joins Rescore's request for a judicial declaration of the

parties' rights, but contends that if the Demurrer is sustained, the third cause of action is moot as to Bernards because nothing remains for the Court to declare. (Dem., at pp. 3:12-15, 16:16-19.)

Rescore argues that Code of Civil Procedure section 1060 authorizes a cross-complaint for a declaration of rights under a written agreement, and states that its request for declaratory relief as to Bernards is "solely rooted in the fourth cause of action for Express Contractual Indemnity." (Opp., at p. 8:9-10.)

"A complaint for declaratory relief is legally sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the parties under a written instrument or with respect to property and requests that the rights and duties of the parties be adjudged by the court. [Citations.] If these requirements are met and no basis for declining declaratory relief appears, the court should declare the rights of the parties whether or not the facts alleged establish that the plaintiff is entitled to favorable declaration. [Citations.]" (Wellenkamp v. Bank of America (1978) 21 Cal.3d 943, 947.)

Here, Rescore sufficiently alleges an actual controversy. Rescore alleges that it claims reimbursement and indemnity from the cross-defendants for any sum it is required to pay Plaintiff and for its costs of defense, and that the cross-defendants contend it is not so entitled. (SACC, ¶ 20.) Rescore further alleges that a declaration is necessary so that it may ascertain its rights, and that its claims and Plaintiff's arise from the same transaction. (SACC, ¶ 21.) The controversy concerns the parties' rights and duties under Article 14, a written instrument.

Bernards contends only that the third cause of action is moot if the Demurrer to the fourth is sustained. Because the Court overrules the Demurrer to the fourth cause of action, that contention does not apply. Bernards has also told the Court that it joins in the request for a declaration of the rights of Bernards, Rescore, and the other cross-defendants. That joinder is a further indication that a controversy exists.

Accordingly, the Demurrer to the third cause of action is overruled.

CONCLUSION

The Demurrer is overruled. Bernards has 20 days to file and serve an Answer.